

KAZAKHSTAN

International documents in the use of information and communication technologies

Most seminal international documents in human rights, such as the 1950 Council of Europe Convention for the Protection of Human Rights and Fundamental Freedoms and the 1966 International Covenant on Civil and Political Rights (ICCPR), recognize the right to search, receive, and distribute any kind of information, regardless of borders, on the basis of the right to privacy.

The exercise of the aforementioned rights implies specific obligations and responsibilities. They can accordingly be subject to certain restrictions that shall, nonetheless, be enacted into law and are necessary for the respect of rights and reputation of others and the protection of national security, public order, health and morals of the population (Paragraph 3, Article 19 of the ICCPR).

According to Article 20 of the ICCPR, all war propaganda should be forbidden by law. Any advocacy of national, racial or religious hatred that constitutes incitement of discrimination, hostility or violence, shall be forbidden by law.

The applicability of international law in Kazakhstan

As a whole, the norms of the ICCPR apply in Kazakhstan.

For example, according to Article 1 of the Law of the Republic of Kazakhstan “On the Countering of Extremism,” the incitement of racial, national or ethnic hatred, religious hatred or discord, as well as the implementation of any religious practice presenting a threat to safety, life, health, morality, rights or freedoms of citizens constitutes extremism.

Within the territory of the Republic of Kazakhstan, it is forbidden to use networks and means of communication to promote extremism, as well as to import, publish, or disseminate extremist and terrorism materials (Article 12 of the Law “On the Countering of Extremism” and Article 10.4 of the Law “On the Countering of Terrorism”).

Furthermore, Kazakhstan enacted the Law “On the Protection of Personal Data” (since 21 May 2013), complying with the requirements of Paragraph 1, Article 4 of the Council of Europe’s Convention for the Protection of Individuals with Regard to Automatic Processing of Personal Data (1981), which states that each side must take necessary measures within the framework of its domestic laws to legally enforce basic principles for protecting personal data.

The goal of the current legislation is to ensure the protection of citizens’ rights in the collection and processing of personal data.

Also, one of the most important documents regulating legal relations in global computer networks is the Council of Europe Convention on Cybercrime signed in Budapest in 2001.

Kazakhstan also employs the norms of the aforementioned convention.

In particular, according to Articles 2-11 of the Council of Europe's Convention on Cybercrime (unlawful access to computer systems; illegal interception of computer data; intentional damage, deletion, impairment, modification or suppression of computer data; intentional and illegal interference with the functioning of computer networks regarding the entry, transfer, damage, impairment, modification or suppression of computer data; illegal use of devices; forgery through the use of computers; fraud through the use of computers; child pornography offenses; violations of copyright and related rights legislation; attempts, complicity or incitement of the aforementioned crimes), each party must adopt legal and other measures necessary to identify criminally unlawful acts regarding the use of computer networks. The norms enshrined in Chapter 7 (criminal offenses in data and communications, Articles 205-213 of the Criminal Code), as well as in Articles 190 (fraud), 369 (official forgery), 312 (production and distribution of materials containing child pornography or the recruitment of children in entertainment events of a pornographic nature), and 198 (the violation of copyright and related rights) of the Criminal Code of the Republic of Kazakhstan.

The Criminal Procedure Code of the Republic of Kazakhstan (Chapter 7) regulates procedure for international cooperation in criminal proceedings enshrined in the Council of Europe's Convention on Cybercrime.

Also, in 1990 the Eighth United Nations Congress on the Prevention of Crime and the Treatment of Offenders adopted the resolution, calling on member states to increase efforts against cybercrimes, modernize national criminal legislation, promote the development of international principles and standards to prevent, prosecute, and penalize cybercrime. On 14 December 1990, the UN General Assembly adopted a resolution, calling on member states to follow the decisions adopted by the Eighth UN Congress.